

Judgment Sheet
PESHAWAR HIGH COURT, PESHAWAR
(Judicial Department)

Criminal Appeal No. 308-P/2025

Usman VS The State & another

Date of hearing: 04.06.2026.

**Appellant by: Mr. Shabbir Hussain Gigyani,
Advocate.**

The State by: Mr. Abdul Rauf Afridi, AAG.

Respondent No. 02 by: Nemo.

JUDGMENT

SAHIBZADA ASADULLAH, J.- Through this criminal appeal, appellant Usman, has challenged the judgment of the learned Additional Sessions Judge-XVI, Peshawar, dated 14.03.2025 rendered in case FIR No. 493 dated 08.05.2021 under sections 295-B, 429, 297, 109, 34 PPC, registered at Police Station Shahpur, Peshawar, whereby, the learned trial Judge has convicted and sentenced the appellant as under:

i. U/s 295-B/34 PPC to imprisonment for life.

ii. U/s 297/34 PPC, to simple imprisonment for one (01) year.

Benefit of section 382-B Cr.P.C. is extended in favor of the appellant.

2. The prosecution case, as set up in the FIR, is that on 07.05.2021 the complainant, Abdul Rahim, along with Ismail and Mati-ur-Rehman, was present near the place of occurrence when they noticed two persons in a graveyard allegedly engaged in suspicious activities; that on approaching them, they allegedly found the said persons burning pages of the Holy Quran and slaughtering a dog over it/ that with the assistance of other persons present there, they apprehended both individuals on the spot, who disclosed their names as Yousaf and Usman; that the accused had willfully desecrated and defiled the Holy Quran, leading to the registration of the instant FIR.

3. After completion of investigation, complete challan was put in Court. Provisions of section 265-C Cr.P.C were complied with and, the appellant was charge sheeted, to which he pleaded not guilty and claimed trial. In order to prove its claim, the prosecution produced and examined as many as 16 witnesses. After closure of prosecution evidence, statement of appellant was recorded under section 342 Cr.P.C, wherein he posed innocence, however, neither he wished to be examined on oath as required under section 340 (2) Cr.P.C, nor wanted to produce evidence in defense. The learned trial Court, after full-fledged trial convicted and sentenced the appellant, fully detailed in the earlier part of this judgment, hence, this appeal.

4. Arguments of learned counsel for the for the appellant and the worthy AAG representing the State were heard and record gone through with their valuable assistance.

5. Before embarking upon an examination of the evidence and the rival assertions advanced before this Court, it may be advantageous to advert, in brief, to the religious backdrop against which the present controversy has arisen. Such an approach is neither novel nor unprecedented. In the celebrated judgment authored by his Lordship Mr. Justice Asif Saeed Khosa in *Mst. Asia Bibi v. The State (PLD 2019 SC 64)*, the discussion commenced with a consideration of the religious and moral context surrounding the dispute so as to appreciate the sensitivities, perceptions and beliefs of those professing the faith. Inspired by the same judicial approach, and for the limited purpose of understanding the milieu in which the allegations in hand are rooted. Throughout human history, mankind has oscillated between two opposing forces: the pursuit of Divine guidance and the temptation of forbidden knowledge. While revealed religions called humanity towards truth, reason, morality, and submission to the Creator, there always existed individuals who

sought power through occult practices, sorcery, and rituals associated with darkness and superstition. The history of witchcraft is, in many respects, the history of misplaced desire of men to attain extraordinary influence through means that stand detached from faith, ethics, and lawful conduct. Islam confronted this phenomenon in unequivocal terms. While the Holy Qur'an acknowledges the existence of sorcery, it simultaneously condemns its practice and warns mankind against pursuing such forbidden paths. The Qur'an recounts that devils taught magic to people as a means of trial and misguidance and declares that those who purchase such practices do so at the expense of their share in the Hereafter. The message is clear that whatever apparent attraction sorcery may hold, it ultimately represents a departure from Divine guidance and an alliance with forces of deception. The prohibition is not confined merely to the practice of magic itself. Islamic teachings further condemn the acts traditionally associated with occult rituals, including the

desecration of sacred objects, the invocation of impure forces, the shedding of blood for superstitious purposes, and the performance of rites designed to seek favour from entities other than Allah Almighty. Such conduct is viewed not merely as a violation of religious commandments but as a manifestation of moral and spiritual decay. The Holy Qur'an occupies a position of unparalleled sanctity in the life of a Muslim. It is not merely a religious text, it is regarded as the revealed Word of Allah Almighty, a source of guidance, mercy, wisdom, and spiritual illumination. Reverence for the Qur'an forms an essential component of Islamic belief. Any deliberate act calculated to dishonor, desecrate, or defile its sacred pages transcends the realm of ordinary wrongdoing and enters the sphere of profound sacrilege. Equally significant is the sanctity accorded to graveyards in Islamic civilization. They are places of reflection, humility, remembrance of death, and respect for those who have departed this world. Islamic tradition teaches believers to visit graves for

contemplation and prayer, not to transform them into venues for superstitious ceremonies or occult practices. The conversion of such places into centers of ritualistic misconduct represents a distortion of the very purpose for which they are revered. The Islamic conception of sorcery is neither rooted in folklore nor confined to abstract theological discourse. The Holy Qur'an expressly refers to the practice of magic and warns against those who pursue it, while the Prophetic traditions classify sorcery amongst the gravest of sins. Historical sources further reveal that the attraction of witchcraft has often been accompanied by acts of sacrilege, impurity, and deliberate rebellion against religious norms. The reason is not difficult to discern. Those who seek unlawful supernatural influence frequently attempt to show their commitment to such practices by repudiating the very values and sacred symbols that religion commands them to honor. The progression from superstition to sacrilege is neither sudden nor accidental. History shows

that individuals who seek power through forbidden means often begin by abandoning reason, then disregard moral and religious restraints, and ultimately descend into acts deliberately designed to sever their attachment to the sacred. What commences as a quest for hidden knowledge frequently culminates in the desecration of that which society and faith hold dearest. It is for this reason that Islamic scholars, throughout the centuries, have observed that practitioners of occult and satanic rituals commonly resort to acts intended to invert religious values. Such practices have historically included the desecration of sacred texts, the use of filth and impurity, the shedding of blood for ritualistic purposes, the invocation of malevolent forces, and the performance of ceremonies at isolated or graveyard locations. These acts are not pursued because they possess any inherent virtue, but because they symbolize a conscious rejection of the principles of purity, reverence, and obedience to Divine command. Against this theological, historical, and moral

backdrop, the allegations in the present case assume a particularly disturbing character. The prosecution asserts that the accused, in pursuit of witchcraft and occult practices, deliberately burnt pages of the Holy Qur'an within a graveyard and further employed the blood of a dog as part of a ritual intended to facilitate such forbidden acts. If ultimately established through legally admissible evidence, such conduct would not merely constitute a violation of penal law, rather, it would reflect a profound assault upon values that lie at the heart of the religious, moral, and cultural fabric of society. Civilized societies have long recognized that the desecration of sacred symbols wounds the collective conscience of the community. When such acts are allegedly undertaken in pursuit of practices associated with superstition, sacrilege, and spiritual corruption, the matter assumes an even graver dimension. However, the law is concerned not with outrage but with proof, therefore, notwithstanding the seriousness of the allegations, the Court remains duty-bound

to examine the evidence with objectivity, fairness, and judicial restraint, for criminal liability can only be founded upon evidence that satisfies the standard prescribed by law. It is against this backdrop that the evidence brought on record in the present case is to be examined.

6. The condemnation of sorcery and occult practices is firmly rooted in the primary sources of Islamic law. The Holy Qur'an does not merely acknowledge the existence of magic, it expressly warns mankind against its pursuit and portrays it as a means of misguidance and spiritual ruin. Allah Almighty, while narrating the incident of Babylon, declares:

"And they followed what the devils had recited during the reign of Solomon. Solomon did not disbelieve, but the devils disbelieved, teaching people magic..."

"اور وہ اس چیز کے پیچھے لگ گئے جو شیاطین، سلیمان کے عہد حکومت میں پڑھا کرتے تھے۔ حالانکہ سلیمان نے کفر نہیں کیا تھا، بلکہ شیاطین نے کفر کیا تھا، جو لوگوں کو جادو سکھاتے تھے..."

(Surah Al-Baqarah, 2:102).

The same verse further states:

"...and they certainly knew that whoever purchased it would have no share in the Hereafter."

"اور بے شک وہ خوب جانتے تھے کہ جو شخص اس (جادو) کو اختیار کرے گا، اس کے لیے آخرت میں کوئی حصہ نہیں ہوگا۔"

(Surah Al-Baqarah, 2:102).

Thus, the Holy Qur'an associates the learning and practice of sorcery with deviation from Divine guidance and warns of its grave consequences. Likewise, Allah Almighty declares:

"And the magician will not succeed, wherever he may be."

"اور جادوگر جہاں کہیں بھی ہو، کامیاب نہیں ہوتا۔"

(Surah Taha, 20:69).

In another place, the Qur'an records the rebuke addressed to those who sought to challenge truth through magical means:

"Has the truth come to you and do you say of it, 'Is this magic?' But magicians will never be successful."

کیا تم حق کے بارے میں، جب وہ تمہارے پاس آ چکا، یہ کہتے ہو کہ یہ جادو ہے؟ حالانکہ جادوگر کبھی کامیاب نہیں ہوتے۔"

(Surah Yunus, 10:77).

The Holy Qur'an further instructs believers to seek refuge in Allah from those who engage in magical practices, stating:

"And from the evil of those who blow on knots."

اور اُن (جادو کرنے والیوں) کے شر سے جو گرہوں
میں پھونکیں مارتی ہیں۔

(Surah Al-Falaq, 113:4).

This verse has traditionally been understood by the classical commentators as a reference to practitioners of sorcery who employed ritualistic methods in the performance of magic. The Prophetic traditions reinforce the same principle. The Holy Prophet Muhammad (peace and blessings be upon him) expressly included sorcery amongst the gravest sins. It is narrated on the authority of Abu Hurairah (RA) that the Messenger of Allah (peace be upon him) said:

"Avoid the seven destructive sins."

"سات ہلاک کر دینے والے گناہوں سے بچو۔"

The Companions asked: "O Messenger of Allah, what are they?"

He replied:

"Associating partners with Allah, sorcery, killing a soul which Allah has forbidden except by right, consuming usury, consuming the property of an orphan, fleeing from the battlefield, and slandering chaste believing women."

"اللہ کے ساتھ کسی کو شریک ٹھہرانا، جادو کرنا، کسی ایسی جان کو ناحق قتل کرنا جسے اللہ نے محترم قرار دیا ہے، سود کھانا، یتیم کا مال کھانا، (جہاد کے وقت) میدانِ جنگ سے پیٹھ پھیر کر بھاگ جانا، اور پاک دامن، بے خبر، مومن عورتوں پر تہمت لگانا۔"

(Sahih al-Bukhari, Hadith No. 2766; Sahih Muslim, Hadith No. 89).

The gravity with which Islamic law treats sorcery is further evident from the fact that the Prophet (peace be upon him) directed believers not only to abstain from practicing magic, but also from seeking assistance from fortune tellers and practitioners of occult arts. It is reported in Sahih Muslim that the Messenger of Allah (peace be upon him) said:

"Whoever visits a fortune teller and asks him about anything, his prayers will not be accepted for forty nights."

"جو شخص کسی کاہن (غیب کی خبریں بتانے والے، نجومی یا قسمت بتانے والے) کے پاس جائے اور اس سے کسی چیز کے بارے میں سوال کرے، اس کی چالیس راتوں تک نماز قبول نہیں کی جاتی۔"

(Sahih Muslim, Hadith No. 2230).

Similarly, it is reported that the Prophet (peace be upon him) said:

"Whoever approaches a soothsayer or a fortune teller and believes what he says has disbelieved in what was revealed to Muhammad (peace be upon him)."

"جو شخص کسی کاہن، نجومی یا غیب کی خبریں بتانے والے کے پاس جائے اور اس کی باتوں کی تصدیق کرے، تو اس نے اس (دین) کا انکار کیا جو محمد ﷺ پر نازل کیا گیا ہے۔"

(Musnad Ahmad; Sunan Abu Dawud; Sunan al-Tirmidhi).

The foregoing verses unequivocally condemn sorcery and allied practices, warn against their consequences, and declare the ultimate futility of those who engage therein. These references are not intended to resolve questions of theology, but rather to illuminate the background against which the conduct of the parties, the testimony of the witnesses and the attendant circumstances are to be appreciated. For, in a society where faith permeates the collective consciousness of its

people, an understanding of the beliefs sincerely held by them often furnishes an indispensable key to the proper appreciation of the facts placed before a Court of law.

7. It is a matter of serious reflection that societies, even when grounded in deep religious traditions, sometimes witness a gradual distancing from the very moral and spiritual foundations that once defined their collective conscience. This departure is not always abrupt, rather, it is often incremental, shaped by ignorance, misguidance, superstition, and a weakening of the connection between belief and conduct. Islamic teachings consistently emphasize that human salvation (falah) and spiritual success lie in adherence to Divine guidance, moral restraint, and reliance upon Allah alone. The Qur'an repeatedly invites mankind towards reflection, reason, and accountability, while warning against deviation into superstition, conjecture, and practices that compromise human dignity and faith. Yet history shows that whenever societies drift away from these

guiding principles, space is created for ignorance to take root, and with it, practices based on fear, illusion, and occult beliefs. The present case, viewed in this broader moral context, illustrates the dangerous consequences of such deviation. Where religious understanding is weakened, and where individuals lose sight of the ethical and spiritual framework provided by faith, there emerges a tendency to seek solutions in irrational and forbidden practices. Such conduct is not merely a legal wrong; it reflects a deeper crisis of understanding, where the line between belief and superstition becomes blurred. It is important, however, to distinguish between moral reflection and judicial determination. The Court is not concerned with philosophical explanations as a substitute for evidence, nor does it attribute guilt on the basis of perceived moral decline. Its sole concern is the application of law to facts proved in accordance with legal standards. Nonetheless, the allegations in the present case, relating to the alleged resort to

witchcraft, the alleged desecration of the Holy Qur'an, and the alleged use of ritualistic acts involving blood, underscore the extent to which deviation from religious and ethical teachings, if established, can lead to conduct that is deeply offensive to societal, moral, and religious norms. This Court observes that religious teachings are not merely matters of ritual observance; they constitute a comprehensive moral framework designed to guide human conduct, preserve dignity, and protect society from falling into superstition and self-destruction. Any departure from this framework, particularly when it manifests in acts of sacrilege or irrational ritualism, reflects not only individual misjudgment but also a broader failure of moral awareness. It is in this backdrop that the evidence in the present case must be assessed, strictly in accordance with law, ensuring that justice is neither influenced by emotion nor detached from the gravity of the allegations.

8. Nevertheless, these observations are not intended to predetermine the fate of

the accused before the Court. It is not the function of a court of law to convict on the basis of emotion, public sentiment, religious outrage, or philosophical reflection. Nor is it the purpose of these introductory observations to suggest that the accused must necessarily be guilty of the allegations levelled against them. Indeed, one of the foundational principles of criminal jurisprudence is that every accused person enters the courtroom clothed with the presumption of innocence. It is not the accusation but the evidence that determines criminal liability. No individual can be condemned merely because the allegations against him appear grave, offensive, or morally disturbing. The law requires proof, and proof alone. Accordingly, this Court does not approach the present matter with a preconceived conclusion. It remains under a legal duty to examine whether the allegations advanced by the prosecution have been established through reliable, trustworthy, and legally admissible evidence. The central question is not whether the accusations evoke

condemnation if true; rather, the question is whether they have been proved in accordance with the standard prescribed by law. Every accused possesses an inviolable right to a fair trial. That right includes the right to be heard, the right to challenge the prosecution evidence, the right to have every piece of evidence scrutinized, and the right to have his guilt determined only after a fair, impartial, and objective assessment of the entire record. Equally, it is the duty of the appellate court to examine whether the evidence relied upon by the trial court was credible, whether it was appreciated in accordance with settled legal principles, and whether the conclusions drawn therefrom are sustainable in law. It is only after undertaking such scrutiny that a court may determine whether the accused were truly connected with the commission of the alleged offences, whether the prosecution succeeded in proving its case beyond reasonable doubt, and whether the findings recorded by the learned trial court warrant affirmation or interference. It is against this theological,

moral, historical, and legal backdrop that the allegations, evidence, and findings in the present case are to be examined.

9. Having discussed the broader theological, moral, and legal dimensions of the matter, the Court now turns to the evidence brought on record in order to ascertain the participation of the accused and to examine the circumstances surrounding their alleged apprehension from the place of occurrence. Such an exercise is indispensable, for it is only through a careful and objective appraisal of the evidence that the true essence of the matter can be appreciated and a just conclusion reached regarding the involvement, or otherwise, of the appellant in the unfortunate occurrence forming the subject matter of the present case. There can be no denying that the allegations levelled in the instant matter are of an exceptionally disturbing nature. If true, the alleged acts are capable of shocking not merely a particular segment of society, but the conscience of all right-thinking individuals. They strike at values held sacred by millions

and are of a nature that naturally evoke strong emotions and profound concern. For believers, in particular, such allegations possess the capacity to cause deep anguish and to shake the conscience to its core. However, grave as the allegations may be, and profound as their moral implications undoubtedly are, this Court remains acutely conscious of the principle that the gravity of an accusation can never be permitted to substitute proof. Nor can the shocking nature of an alleged occurrence be allowed to influence the judicial mind. Courts of law do not dispense justice on the basis of emotion, outrage, public sentiment, or the perceived abhorrence of an accusation. Their legitimacy rests upon their unwavering commitment to impartiality, objectivity, and adherence to the rule of law. It is often said that justice is blind. The principle signifies that courts must remain indifferent to passion and prejudice and must evaluate every case solely on the touchstone of evidence and law. The more serious the accusation, the greater becomes the obligation upon the Court to

guard itself against assumptions and preconceived notions. Indeed, if the gravity of an incident or its capacity to shock society were permitted to influence the judicial process, it would become exceedingly difficult to ensure the fair administration of justice. In such circumstances, the right to a fair trial, one of the most fundamental guarantees recognized by civilized legal systems, would stand compromised. The consequences of such an approach would be grave. A conviction founded upon emotion rather than evidence would not constitute justice; it would amount to a miscarriage thereof. Such a course would offend not only the principles of criminal jurisprudence but also the dictates of morality and the teachings of religion itself, all of which insist that a person be judged fairly and only upon proof that satisfies the requisite legal standard. The administration of criminal justice can neither permit nor afford such an eventuality. It is for this reason that every accused person, regardless of the nature of the allegations levelled against him, remains

entitled to have his case examined with complete fairness, to have the evidence against him scrutinized with care, and to have every doubt and inconsistency tested in accordance with law. The burden always rests upon the prosecution to establish its case beyond reasonable doubt, and unless that burden is discharged, no conviction can lawfully be sustained. Therefore, before expressing any opinion regarding the culpability or innocence of the appellant, and before determining whether the findings recorded by the learned trial Court are sustainable, this Court deems it desirable to take into consideration the attending circumstances of the present case, the prosecution evidence brought on record, and the manner in which the same has been appreciated by the Court below.

10. The prosecution story originates on a night during the sacred month of Ramadan. The faithful had gathered in a mosque to perform the *Tarawih* prayers, a period traditionally associated with devotion,

spiritual reflection, and communal harmony. As the worshippers emerged from the mosque upon the conclusion of the prayers, their attention was suddenly drawn towards flames allegedly rising from a nearby graveyard. What initially appeared to be an unusual occurrence soon transformed into a matter of grave public concern. Motivated by curiosity and apprehension alike, members of the congregation proceeded towards the source of the flames in order to ascertain what had transpired. According to the prosecution, the scene that confronted them was both unsettling and emotionally charged. Burnt pages of the Holy Qur'an were allegedly found scattered upon the ground. Some of those pages were stated to bear bloodstains. Nearby lay an injured puppy whose throat had allegedly been cut, though it remained alive. A bloodstained knife, ashes of burnt material, and other articles purportedly connected with the occurrence were also said to be present. The prosecution maintains that the gathering, shocked by what they perceived to be a

deliberate act of desecration, immediately restrained the present appellant along with a co-accused and informed the local police. The arrival of the police transformed what had begun as a spontaneous public reaction into a formal criminal investigation. The complainant narrated the occurrence at the spot, leading to the registration of the First Information Report. Thereafter, the investigating officer undertook the customary investigative measures. The place of occurrence was inspected, a site plan was prepared, and the articles allegedly found at the scene, including the burnt pages, the knife, the ashes, and the injured animal, were taken into possession through recovery memo. The prosecution further asserts that the investigation took an unexpected turn on the following day when both accused allegedly expressed their willingness to confess their guilt. They were produced before a competent court, where confessional statements were recorded in accordance with the prescribed legal procedure. During those statements, the accused allegedly implicated another

individual, identified as Bakht Jamal, whom they described as the principal instigator behind the occurrence. That individual, however, remained beyond the reach of the investigating agency and continued to evade arrest. Upon completion of the investigation, the matter was placed before the learned trial Court. The prosecution examined its witnesses, produced documentary evidence, and relied upon the recoveries and confessional statements. At the conclusion of the trial, the learned Court found both accused guilty and sentenced them to imprisonment for life. Yet, of the two convicted persons, only the present appellant elected to challenge the judgment before this Court, while the co-convict accepted the verdict and continues to undergo the sentence imposed upon him. The appeal thus presents questions that transcend the mere retelling of a disturbing accusation. Courts of law do not adjudicate upon emotions, suspicions, or public outrage; they adjudicate upon evidence. The greater the shock generated by an allegation, the greater

becomes the judicial obligation to ensure that reason remains undisturbed by sentiment. History repeatedly demonstrates that accusations capable of inflaming public passions possess a peculiar capacity to overshadow weaknesses in proof. The law, however, demands the very opposite. It requires that the intensity of an allegation be matched by an equally rigorous scrutiny of the evidence advanced in its support. It is for this reason that this Court must carefully examine whether the accused were indeed present at the place of occurrence in the manner alleged; whether they were apprehended under the circumstances narrated by the prosecution; whether the worshippers actually witnessed the events attributed to them; whether the recoveries were made in the manner asserted; whether the confessional statements inspire confidence; and whether the investigation, viewed as a whole, furnishes assurance regarding the truthfulness of the prosecution case. The task before the Court is neither to endorse public perception nor to reject it. Its

duty is far more exacting. It must separate certainty from conjecture, proof from suspicion, and legal truth from emotional conviction. Only after undertaking that exercise can it be determined whether the prosecution succeeded in discharging the burden imposed upon it by law and whether the conviction recorded by the learned trial Court is capable of being sustained on the touchstone of proof beyond reasonable doubt.

11. In order to properly appreciate the peculiar circumstances surrounding the present case, this Court considers it indispensable to revisit the occurrence in its entirety, not as a collection of disconnected facts, but as a continuum of events which the prosecution relies upon to establish the guilt of the accused. The manner in which the incident allegedly unfolded, the timing of its occurrence, the arrival of the worshippers at the scene, the recoveries effected therefrom, and the eventual apprehension of the accused, together constitute the foundation upon which the prosecution case rests. It is only by

examining each of these circumstances individually and then collectively that the Court can determine whether the prosecution narrative possesses the ring of truth or merely the appearance of it. The prosecution sought to establish its version principally through the testimony of the complainant, examined as PW-01, and the eyewitnesses, PW-02, and PW-14. These witnesses narrated in considerable detail the circumstances under which they allegedly reached the place of occurrence, observed the incriminating articles, apprehended the accused, and informed the police. Their testimonies remained substantially harmonious regarding the essential features of the occurrence, namely the presence of the burnt pages of the Holy Qur'an, the ashes recovered from the scene, the injured puppy, the bloodstained knife, and the circumstances leading to the registration of the criminal case. A close and careful examination of their depositions reveals that each witness was subjected to lengthy, searching, and, at times, penetrating

cross-examination. Yet the defence, despite considerable effort, was unable to extract any contradiction of consequence capable of striking at the core of the prosecution case. No material discrepancy emerged which could reasonably suggest embellishment, exaggeration, or subsequent improvement. Their accounts, though tested with considerable rigor, remained fundamentally consistent upon all material particulars. Equally significant is the fact that the defense failed to establish the existence of any personal animosity, prior hostility, or ulterior motive that could have prompted these witnesses to falsely implicate the accused in an occurrence carrying such grave consequences. The background circumstances of the parties further strengthen this conclusion. The accused admittedly belonged to a village situated approximately two kilometers from the place of occurrence, whereas the complainant and the eyewitnesses were residents of the locality where the incident allegedly transpired. The

record is conspicuously devoid of any evidence suggesting prior acquaintance, dispute, rivalry, or grievance between them. Nor were the witnesses shown to be closely connected or united by any common interest which might have provided a motive for false implication. On the contrary, they appear to have been ordinary worshippers who happened to be part of the congregation assembled for *Tarawih* prayers and who, upon observing an unusual occurrence, proceeded towards the graveyard and allegedly witnessed the events that followed. The absence of any discernible motive for false implication assumes considerable significance. Experience demonstrates that allegations of a serious nature are rarely fabricated without some corresponding reason, whether born of vengeance, personal gain, or longstanding hostility. In the present case, however, no such motive has surfaced from the record. The defense has not identified any circumstance from which it may reasonably be inferred that the witnesses possessed either the inclination

or the opportunity to manufacture a case of this nature against the accused. Equally absent is any evidence suggesting that the witnesses were planted, that the accused were apprehended elsewhere and falsely shown to have been arrested at the scene, or that the recoveries were manipulated to create an artificial appearance of guilt. Another circumstance which lends assurance to the prosecution narrative is the immediacy with which the matter came to the attention of the police. The witnesses consistently maintained that the accused remained under the custody of the gathering from the moment of their apprehension until the arrival of the investigating officer. Upon reaching the scene, the police assumed custody of the accused and formally took possession of the articles allegedly recovered from the place of occurrence. Recovery memoranda were prepared contemporaneously, thereby creating a documentary record that corresponds with and supports the oral account furnished by the prosecution witnesses. The investigating

officer, examined as PW-15, also provided a detailed account of the investigative process. He testified that upon receiving information, he proceeded without delay to the place of occurrence, inspected the scene, prepared the site plan at the pointation of the complainant, and secured possession of the articles allegedly connected with the occurrence, including the burnt pages of the Holy Qur'an, the ashes, the bloodstained knife, and the injured puppy. Thereafter, both the accused and the recovered articles were taken to the police station for further proceedings. Significantly, his testimony remained consistent with the broader prosecution narrative and did not suffer from any material infirmity during cross-examination. The prosecution version derives further support from the scientific evidence brought on record. The articles recovered from the scene were forwarded to the Forensic Science Laboratory for examination. The reports revealed that the stains detected upon the knife were of animal blood. Likewise, the stains found upon the

recovered pages were also identified as animal blood. These findings acquire particular significance when viewed alongside the prosecution evidence that an injured puppy, whose throat had allegedly been cut, was recovered alive from the scene. The forensic evidence, therefore, does not stand in isolation, rather, it appears to dovetail with the ocular account and furnish an additional layer of corroboration regarding the source of the blood and the use of the recovered knife. When the ocular account is examined in conjunction with the recoveries, the scientific evidence, the prompt reporting of the occurrence, and the apprehension of the accused at the scene, a coherent and interconnected chain of circumstances emerges. The evidence does not operate in separate compartments; rather, each circumstance appears to reinforce and lend assurance to the other. The prosecution case is not founded upon a solitary piece of evidence susceptible to doubt or misinterpretation. Instead, it is supported by

multiple strands of proof which converge upon a common point and collectively strengthen the prosecution narrative. The law does not require that every circumstance, viewed in isolation, should conclusively establish guilt. What it demands is that the cumulative effect of the evidence be such as to inspire confidence and exclude reasonable doubt. In the present case, the ocular account, the contemporaneous apprehension of the accused, the recoveries effected from the scene, the prompt intervention of the police, and the corroborative forensic findings appear to form an integrated evidentiary framework. Each component derives support from the others, and together they create a body of evidence that substantially reinforces the prosecution case.

12. The Court now turns to what, in the peculiar circumstances of the present case, constitutes the most delicate and legally significant facet of the entire prosecution case, namely the confessional statements of the appellants. While the prosecution has relied

upon ocular, documentary, and scientific evidence to establish its case, the confessions recorded before the learned Judicial Magistrate occupy a central position within the evidentiary framework and therefore warrant an examination that is both cautious and comprehensive. It is a settled principle of criminal jurisprudence that a judicial confession, if found to be voluntary, truthful, and free from any taint of coercion, inducement, promise, or threat, may by itself form the basis of a conviction. At the same time, the law requires the Court to approach such evidence with circumspection, not because confessions are inherently unreliable, but because an admission of guilt must be tested against the surrounding circumstances and the overall probabilities of the case before it can safely be accepted as the foundation of criminal liability. The record reveals that shortly after their arrest, the accused expressed their willingness to confess their involvement in the occurrence. They were accordingly produced before the learned Judicial Magistrate, who

appears to have observed, with commendable care, all procedural safeguards prescribed by law. The accused were afforded sufficient time for reflection, were warned that they were under no obligation to make any statement, and were informed of the legal consequences that might follow if they chose to confess. The learned Magistrate satisfied himself regarding the voluntariness of the statements before proceeding to record them. Nothing has been brought on record to suggest that the confessions were procured through fear, pressure, manipulation, or any external influence capable of impairing their voluntary character. On this aspect, the Court finds no circumstance that would detract from their evidentiary worth. The real difficulty, however, does not concern the admissibility of the confessions but the manner in which they are to be appreciated.

13. Liability is thus frequently assessed through the prism of overt conduct, making the distinction between the principal actor and a mere spectator comparatively

straightforward. The present case stands on a markedly different footing. The prosecution does not allege a crime born of sudden impulse, personal animosity, or an unforeseen chain of events. Rather, the occurrence is projected as the execution of a preconceived design intended to achieve a particular objective. The significance of such an occurrence cannot, therefore, be measured solely by identifying the individual who performed each physical act. Equally relevant are the collective conduct of the participants, their awareness of the purpose being pursued, and the degree to which each associated himself with the accomplishment of that purpose. For this reason, the Court considers it unsafe to evaluate the role of the appellant through standards ordinarily employed in more conventional criminal cases. Human participation in unlawful conduct does not always manifest itself through visible action. There are situations in which criminal responsibility arises not merely from what a person does, but from what he knowingly joins,

supports, facilitates, or allows to be accomplished through his conscious association with another. The law is concerned not only with the hand that executes an act but also with the mind that aligns itself with its execution. The principal submission advanced on behalf of the appellant is that even if his confessional statement is accepted at face value, it does not portray him as the principal offender. Learned counsel contends that the co-convict was the moving force behind the occurrence, that the alleged objective was his own, and that he alone stood to derive whatever benefit was sought to be achieved. It is argued, therefore, that the appellant's confession is substantially exculpatory and incapable of furnishing a basis for criminal liability of the nature attributed to him. The argument, though not devoid of substance, does not fully answer the question before the Court. A confessional statement is not to be examined in isolated fragments. Its true import emerges only when it is read as a whole and viewed against the backdrop of the established

circumstances. When so examined, the statement does not depict the appellant as an unsuspecting or accidental presence at the scene. It reveals that he accompanied the principal offender to the place of occurrence, remained with him during the execution of the alleged design, and possessed knowledge of the object sought to be achieved. At no stage does the narrative suggest surprise, reluctance, opposition, or withdrawal on his part. The circumstances disclosed in the confession are, instead, indicative of conscious and continued association. This aspect assumes particular significance because the occurrence alleged by the prosecution was not an act capable of being understood in purely physical terms. According to the prosecution narrative itself, the conduct in question was directed towards the attainment of a specific purpose. In such a setting, the presence of a companion who is aware of the intended objective and who voluntarily remains associated with its execution cannot be dismissed as a neutral

circumstance devoid of legal consequence. The value of such presence lies not in its physical dimension alone, but in the assurance, support, and reinforcement that it may provide to the principal actor. The law does not concern itself exclusively with the visible mechanics of an offence. It also takes into account those less tangible forms of participation which contribute to the accomplishment of an unlawful design. There are occasions where a criminal enterprise may outwardly appear to be the act of a single individual, yet its successful execution is facilitated by the conscious companionship of another who, though not performing every constituent act himself, knowingly lends his support to its commission. In such circumstances, culpability cannot be determined by a mechanical assessment of physical acts alone. Viewed in this context, the evidentiary significance of the appellant's confession lies not merely in the absence of an admission that he personally performed every act constituting the offence, but in what the

statement discloses regarding his knowledge, conduct, and continued association with the occurrence. Those features assume even greater importance when examined alongside the ocular account, the recoveries effected from the scene, the forensic evidence connecting the recovered articles with the occurrence, and the circumstances attending the arrest of the accused. Consequently, this Court is confronted with a situation materially distinguishable from the ordinary criminal case where liability may be determined simply by identifying the person who executed the final physical act. The peculiar nature of the occurrence, the admitted companionship of the accused, the objective sought to be achieved, and the surrounding circumstances require a broader inquiry into the nature of participation itself. In such cases, presence is not to be measured merely by physical proximity; it must be assessed in the light of knowledge, intention, conscious association, and the extent to which such presence contributed to the realization of the unlawful purpose.

14. Having given our anxious consideration to the submissions advanced by the learned counsel for the appellant, we find ourselves unable to subscribe to the proposition canvassed before us. Acceptance of such an argument would require this Court to adopt a view inconsistent with settled principles of criminal jurisprudence and to disregard the well-recognized doctrine that criminal responsibility is not invariably determined by the extent of physical participation alone. The defense proceeds on the premise that since the appellant did not personally perform the principal acts constituting the occurrence, his role must necessarily be viewed as secondary and deserving of a different treatment. The argument, though attractive at first glance, overlooks an important facet of criminal liability. There are occasions where culpability flows not merely from the act performed by one's own hand but from conscious and deliberate association with the unlawful design pursued by another. When the confessional

statements of the appellant and the convicted co-accused are read together and examined in the backdrop of the surrounding circumstances, little room is left for doubt regarding the appellant's position. The narrative emerging therefrom does not portray him as an accidental presence or an unwitting companion. It establishes that he accompanied the co-convict to the place of occurrence with full awareness of the object sought to be achieved and remained associated with the enterprise throughout its execution. Significantly, the record discloses no attempt on his part either to withdraw from the venture or to distance himself from the acts being committed. In the peculiar facts of the present case, such conduct cannot be treated as legally inconsequential. The occurrence, as projected by the prosecution and partly acknowledged in the confessions, was not the result of a spontaneous act but the execution of a preconceived design directed towards a specific objective. In such circumstances, the presence of a person who is aware of that

objective and voluntarily remains associated with its accomplishment assumes a significance far greater than mere physical proximity. The law is not concerned solely with identifying the individual who performed the final act. It is equally concerned with those whose conscious association lends strength, assurance, and facilitation to the execution of an unlawful purpose. Criminal enterprises are often sustained not only by visible acts but also by the support and confidence derived from the presence of those who knowingly stand alongside their perpetrators. Such participation may not always manifest itself in overt action, yet it remains relevant in determining the true nature and extent of criminal responsibility. Viewed from this perspective, the appellant's role cannot be artificially isolated from that of the co-convict. The material on record depicts a concerted undertaking directed towards a common objective. The fact that one participant may have assumed a more active role during the occurrence does not, by itself, diminish the

responsibility of the other where knowledge, presence, and continued association stand established. We are, therefore, unable to persuade ourselves that the appellant deserves to be viewed through a more lenient lens merely because the co-convict occupied the more prominent role. The confessional statements, when considered alongside the other incriminating circumstances available on the record, establish conscious participation in the enterprise and a willing association with its object and execution. These features place the appellant on the same legal footing as the co-convict and justify equal treatment for the purposes of criminal liability. To conclude otherwise would be to elevate the form of participation above its substance. The law does not permit a person to escape responsibility merely because another performed the more visible part of the occurrence. Where an individual knowingly joins, accompanies, and remains associated with the accomplishment of an unlawful design, his culpability cannot be measured

solely by the absence of a direct physical act. In such circumstances, responsibility attaches not only to the hand that executes the act but equally to the person whose conscious presence and association form an integral part of its commission.

15. At this stage, it would be advantageous to refer to the principle enunciated by the Hon'ble Supreme Court of India in *Suresh v. State of U.P.* [(2001) 3 SCC 673], wherein it was held that, for the application of the doctrine of joint liability, two essential ingredients must be established i.e., common intention and participation in the commission of the offence. The Court observed that a person must be physically present at the actual commission of the crime for the purpose of facilitating or promoting the offence, and that the presence of those who, in one way or another, facilitate the execution of the common design is itself tantamount to actual participation in the criminal act. It was further held that common intention may be inferred from the attending circumstances and

the conduct of the parties, and that direct evidence thereof is seldom available. Such common intention may even develop during the course of the occurrence. When all the pieces of evidence are placed in juxtaposition and examined in their cumulative effect, no ambiguity remains regarding the participation and involvement of the appellant in the commission of the offence. Not only has the ocular account remained consistent, confidence-inspiring, and free from any material contradiction, but the recoveries effected from the place of occurrence, coupled with the positive laboratory reports, constitute strong corroborative circumstances lending substantial assurance to the prosecution case. These circumstances do not stand in isolation, rather, they form an unbroken chain connecting the appellant with the occurrence. The prosecution has successfully brought home the charge against him beyond any shadow of reasonable doubt. The learned trial Court, after proper appraisal of the evidence available on record, rightly recorded the

conviction. The impugned judgment is well-reasoned, based upon a correct appreciation of the evidence, and does not suffer from any legal or factual infirmity warranting interference by this Court.

16. For what has been discussed above, the instant criminal appeal is devoid of merit and substance, the same is, therefore, dismissed.

Announced

04.06.2026

Naqqash Haider

J U D G E

J U D G E

Division Bench.

Hon'ble Mr. Justice Sahibzada Asadullah, J.

Hon'ble Mr. Justice Babar Sattar, J.